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§ 1983

How an 1871 law lets people sue state and local officials for constitutional violations: its history, elements, and modern use.

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Most constitutional rights are written as limits on government. But what happens when a state or local official crosses the line? The most important answer is a single sentence in the United States Code: 42 U.S.C. § 1983. This article explains what it says, where it came from, and how courts apply it today. It is general education, not legal advice.

The Text of the Statute

Here is the statute in full, as it appears in the U.S. Code:

> "Every person who, under color of any statute, ordinance, regulation, custom, or usage, of any State or Territory or the District of Columbia, subjects, or causes to be subjected, any citizen of the United States or other person within the jurisdiction thereof to the deprivation of any rights, privileges, or immunities secured by the Constitution and laws, shall be liable to the party injured in an action at law, suit in equity, or other proper proceeding for redress, except that in any action brought against a judicial officer for an act or omission taken in such officer's judicial capacity, injunctive relief shall not be granted unless a declaratory decree was violated or declaratory relief was unavailable. For the purposes of this section, any Act of Congress applicable exclusively to the District of Columbia shall be considered to be a statute of the District of Columbia."

What each phrase means

- **"Every person"** identifies who can be sued: individual officials and local governments, but not states when the claim is for damages.
- **"Under color of ... State" law** means the defendant used, or misused, state or local government authority. That is why § 1983 generally does not reach purely private conduct or federal officials.
- **"Subjects, or causes to be subjected"** covers both those who directly commit a violation and those who set it in motion.
- **"Any citizen ... or other person within the jurisdiction"** means protection is not limited to citizens.
- **"Rights ... secured by the Constitution and laws"** covers constitutional rights and some federal statutory rights (*Maine v. Thiboutot,* 1980), though a statute must clearly create individual rights (*Gonzaga University v. Doe,* 2002).
- **"Action at law, suit in equity"** authorizes suits for money damages and for court orders.
- **The judicial-officer clause** (added in 1996) limits injunctions against judges; the **District of Columbia language** was added in 1979.

Section 1983 does not create rights by itself. It is a vehicle for enforcing rights found elsewhere.

History: From Reconstruction to Revival

The Civil Rights Act of 1871

After the Civil War, the nation adopted the Thirteenth, Fourteenth, and Fifteenth Amendments. Across much of the South, the Ku Klux Klan and similar groups used violence against formerly enslaved people and their allies, and state authorities were often unable or unwilling to stop it.

At President Ulysses S. Grant's urging, Congress passed the Civil Rights Act of April 20, 1871, often called the Ku Klux Klan Act. Section 1 created a federal civil remedy against people who, acting under state authority, deprived others of constitutional rights. It later became Revised Statutes § 1979 and, eventually, 42 U.S.C. § 1983.

Decades of dormancy

For roughly ninety years, the statute saw little use. Reconstruction ended in 1877, the Supreme Court read the Fourteenth Amendment narrowly (for example, in the *Slaughter-House Cases*, 1873, and the *Civil Rights Cases*, 1883), and "under color of" law was widely understood to cover only conduct state law actually authorized.

Monroe v. Pape (1961)

That changed with *Monroe v. Pape* (1961). The plaintiffs alleged that Chicago police officers broke into their home without a warrant, ransacked it, and detained Mr. Monroe without promptly bringing him before a judge. The officers argued their conduct, which violated Illinois law, was not "under color of" law.

The Supreme Court disagreed. Drawing on an earlier criminal case, *United States v. Classic* (1941), it held that misuse of power possessed by virtue of state law, made possible only because the wrongdoer is clothed with state authority, is action "under color of" state law. The Court also held that a plaintiff need not first seek relief in state court, because the federal remedy is supplementary to any state remedy. (Its holding that cities could not be sued was later overruled.) Section 1983 litigation grew dramatically afterward.

The Elements of a § 1983 Claim

In general terms, a plaintiff must show (1) that a person (2) acting under color of state law (3) deprived the plaintiff of a right secured by federal law. A plaintiff also must connect each defendant to the harm; causation matters.

Who counts as a "person"

- **Individual officials** can be sued in their *individual* (personal) capacity for damages for their own conduct.
- **States are not "persons"** for damages purposes. In *Will v. Michigan Department of State Police* (1989), the Court held that neither a state nor its officials acting in their official capacities are "persons" under § 1983 when sued for damages. This fits with state sovereign immunity under the Eleventh Amendment.
- **Prospective relief is different.** Under the doctrine of *Ex parte Young* (1908), a plaintiff may sue a state official in an official capacity for prospective relief, such as an injunction stopping an ongoing violation of federal law. *Will* itself noted that official-capacity suits for prospective relief are not treated as suits against the state.
- **Local governments**, such as cities and counties, *are* persons, as discussed in the next section.

Private parties as state actors

Private parties usually are not state actors, but courts may treat their conduct as state action under overlapping tests: **public function** (performing a function traditionally and exclusively governmental), **joint action** (willfully participating with officials), **state compulsion** (government coercion or significant encouragement), and **close nexus or entwinement**. Key cases include *Lugar v. Edmondson Oil Co.* (1982), *West v. Atkins* (1988) (a private doctor under contract to treat state prisoners), and *Brentwood Academy v. Tennessee Secondary School Athletic Ass'n* (2001). These inquiries are highly fact-specific.

Municipal Liability: Monell and Its Limits

In *Monell v. Department of Social Services* (1978), the Supreme Court held that local governments are "persons" under § 1983, partly overruling *Monroe*. But it also held that a city cannot be held liable merely because it employs

someone who violated the Constitution. In other words, there is no *respondeat superior* (vicarious) liability.

Instead, the violation must be caused by the municipality's own **policy or custom**: a formal policy, a decision by a final policymaker, or a practice so widespread it functions as policy.

Failure to train

In *City of Canton v. Harris* (1989), the Court held that inadequate training can support municipal liability, but only where the failure to train amounts to **deliberate indifference** to the rights of the people officers interact with, and where the deficiency actually caused the violation. Later decisions, such as *Connick v. Thompson* (2011), indicate that a pattern of similar violations is ordinarily needed to show deliberate indifference. Municipalities cannot claim qualified immunity (*Owen v. City of Independence*, 1980), but they also cannot be ordered to pay punitive damages (*City of Newport v. Fact Concerts*, 1981).

Immunities

Qualified immunity

Individual officials sued for damages may raise **qualified immunity**. In *Harlow v. Fitzgerald* (1982), the Court held that officials performing discretionary functions are generally shielded from damages liability unless their conduct violates "clearly established statutory or constitutional rights of which a reasonable person would have known." *Harlow* made the test objective, focusing on the state of the law rather than the official's subjective intent.

Courts ask two questions: (1) Do the facts show a violation of a constitutional right? (2) Was that right clearly established at the time? *Saucier v. Katz* (2001) required courts to answer them in that order. *Pearson v. Callahan* (2009) made the order discretionary, so courts may grant immunity on the "clearly established" prong without deciding whether a violation occurred.

"Clearly established" generally means that existing precedent made the unlawfulness of the conduct apparent to a reasonable official. Courts are

told not to define rights too generally, though *Hope v. Pelzer* (2002) recognized that a factually identical prior case is not always required.

Qualified immunity is debated. Critics, including scholars and some Justices, question its historical basis and argue it leaves serious violations unremedied. Defenders say it protects officials making quick decisions from burdensome litigation. Colorado and New Mexico have created state-law claims without a qualified immunity defense, but the federal doctrine remains.

Absolute immunities

Some officials receive **absolute immunity** for certain functions:

- **Judges** are immune from damages for judicial acts, even if alleged to be erroneous or malicious, unless they act in the clear absence of all jurisdiction (*Pierson v. Ray*, 1967; *Stump v. Sparkman*, 1978).
- **Prosecutors** are immune for conduct intimately associated with the judicial phase of the criminal process, such as initiating and presenting a case (*Imbler v. Pachtman*, 1976). Investigative or administrative acts may receive only qualified immunity.
- **Legislators**, including local legislators, are immune for legitimate legislative activity (*Tenney v. Brandhove*, 1951; *Bogan v. Scott-Harris*, 1998).

The approach is *functional*: immunity depends on the nature of the act, not just the official's title.

Pleading Standards: What a Complaint Must Say

From Conley to Twombly

For fifty years, federal courts applied the generous standard of *Conley v. Gibson* (1957): a complaint should not be dismissed "unless it appears beyond doubt that the plaintiff can prove no set of facts in support of his claim which would entitle him to relief."

In *Bell Atlantic Corp. v. Twombly* (2007), an antitrust case, the Court retired that language. A complaint must now contain "enough facts to state a claim

to relief that is plausible on its face." "Labels and conclusions" and "a formulaic recitation of the elements of a cause of action" are not enough.

Ashcroft v. Iqbal (2009)

Ashcroft v. Iqbal (2009) confirmed that the plausibility standard applies to all civil actions, not just antitrust cases, because it rests on Federal Rule of Civil Procedure 8. *Iqbal* described a two-step approach:

1. **Set aside legal conclusions.** Courts accept factual allegations as true, but not legal conclusions. In the Court's words, "Threadbare recitals of the elements of a cause of action, supported by mere conclusory statements, do not suffice."
2. **Assess plausibility.** Courts then ask whether the remaining factual allegations plausibly give rise to an entitlement to relief, a "context-specific" task drawing on "judicial experience and common sense."

Iqbal was a *Bivens* case against federal officials, but its reasoning applies in § 1983 cases. On supervisory liability, the Court stated that because vicarious liability does not apply, “a plaintiff must plead that each Government-official defendant, through the official’s own individual actions, has violated the Constitution.”

Pro se pleadings

Courts construe pro se complaints liberally. *Haines v. Kerner* (1972) held them to “less stringent standards than formal pleadings drafted by lawyers,” and *Erickson v. Pardus* (2007), decided weeks after *Twombly*, reaffirmed that principle. Facts supporting each element are still required, but courts often allow amendment.

Common Types of § 1983 Claims

- **Fourth Amendment.** Claims for unlawful searches, arrests without probable cause, and excessive force during an arrest or stop. *Graham v. Connor* (1989) holds that excessive-force claims arising from arrests are judged by an “objective reasonableness” standard from the perspective of a reasonable officer on the scene.
- **First Amendment retaliation.** Courts generally ask whether the plaintiff engaged in protected activity, suffered an adverse action that would deter

a person of ordinary firmness, and whether the protected activity caused the adverse action. For retaliatory arrests, *Nieves v. Bartlett* (2019) held that probable cause generally defeats the claim, subject to a narrow exception.

- **Fourteenth Amendment due process.** Procedural claims allege a deprivation of life, liberty, or property without fair procedures; substantive claims target certain government actions regardless of procedure. Mere negligence is not enough (*Daniels v. Williams*, 1986).
- **Fourteenth Amendment equal protection.** These generally require intentional discrimination, including "class of one" claims (*Village of Willowbrook v. Olech*, 2000).
- **Eighth Amendment.** Convicted prisoners' claims about excessive force or conditions, including deliberate indifference to serious medical needs (*Estelle v. Gamble*, 1976). Pretrial detainees proceed under the Fourteenth Amendment (*Kingsley v. Hendrickson*, 2015, applying an objective excessive-force standard).

Remedies

- **Compensatory damages** for actual injuries. Where a constitutional violation is proven without actual injury, courts may award nominal damages (*Carey v. Piphus*, 1978).
- **Punitive damages** may be awarded against individual defendants when their conduct involves evil motive or intent, or reckless or callous indifference to federally protected rights (*Smith v. Wade*, 1983). They are not available against municipalities.
- **Injunctive and declaratory relief** to stop ongoing or future violations, subject to the judicial-officer limit in the statute's text.
- **Attorney's fees.** Under 42 U.S.C. § 1988(b), courts may award a "prevailing party" a reasonable attorney's fee as part of costs. Prevailing defendants generally recover fees only for frivolous claims. In *Kay v. Ehrler* (1991), the Court held that a lawyer representing himself could not recover fees, noting agreement among the circuits that non-lawyer pro se litigants cannot either. Self-represented litigants generally cannot recover attorney's fees.

Key Procedural Points

Statute of limitations

Section 1983 has no limitations period of its own. *Wilson v. Garcia* (1985) directs courts to borrow the state's personal-injury period, and *Owens v. Okure* (1989) says to use the general or residual one where a state has several. In California, that is generally two years. When a claim accrues is a federal question (*Wallace v. Kato*, 2007); tolling rules generally come from state law.

The Heck bar

Under *Heck v. Humphrey* (1994), if success on a § 1983 damages claim would necessarily imply that a conviction or sentence is invalid, the plaintiff must first show it has been reversed, expunged, declared invalid, or called into question by a federal writ of habeas corpus.

Exhaustion

Generally, plaintiffs do not have to exhaust state administrative remedies before filing (*Patsy v. Board of Regents*, 1982). The major exception is the Prison Litigation Reform Act (PLRA), 42 U.S.C. § 1997e(a), which requires prisoners to exhaust available administrative remedies before suing about prison conditions (*Porter v. Nussle*, 2002). The Court has held that this means "proper" exhaustion, following the prison's procedural rules (*Woodford v. Ngo*, 2006).

Where to file

Claims are commonly filed in federal court, but state courts can also hear them.

Why § 1983 Matters Today

Section 1983 is one of the main ways constitutional rights become enforceable in everyday life, from police encounters and jail conditions to public employment and free speech. Litigation under it also shapes how governments write policies and train employees. And it remains contested: qualified immunity, *Monell*'s limits, plausibility pleading, and the *Heck* bar all affect which claims reach a jury.

Conclusion

Section 1983 began as a Reconstruction-era response to organized violence and official indifference. *Monroe v. Pape* turned it into a central tool of civil rights law. Understanding its elements, immunities, and procedural rules helps anyone, lawyer or not, follow how constitutional rights are enforced.

Key Terms

- **Under color of state law:** Using, or misusing, authority granted by state or local government.
- **Individual vs. official capacity:** Suing an official personally vs. effectively suing the government entity.
- **Monell claim:** A § 1983 claim against a local government based on its policy or custom.
- **Respondeat superior:** Holding an employer liable for an employee's acts; not available under § 1983.
- **Qualified immunity:** A defense shielding officials from damages unless they violated clearly established law.
- **Absolute immunity:** Complete immunity from damages for certain functions, such as judicial or legislative acts.
- **Prospective relief:** Court orders directed at future conduct, such as injunctions.
- **Plausibility standard:** The *Twombly/Iqbal* requirement that a complaint allege facts making a claim plausible, not merely possible.
- **Pro se:** Representing oneself in court without a lawyer.

Further Reading

- 42 U.S.C. § 1983 (Cornell LII): https://www.law.cornell.edu/uscode/text/42/1983
- 42 U.S.C. § 1988 (Cornell LII): https://www.law.cornell.edu/uscode/text/42/1988
- Federal Rule of Civil Procedure 8 (Cornell LII): https://www.law.cornell.edu/rules/frcp/rule_8
- *Monroe v. Pape* (1961) (Cornell LII): https://www.law.cornell.edu/supremecourt/text/365/167

- *Monell v. Department of Social Services* (1978) (Cornell LII): https://www.law.cornell.edu/supremecourt/text/436/658
- *Harlow v. Fitzgerald* (1982) (Cornell LII): https://www.law.cornell.edu/supremecourt/text/457/800
- *Pearson v. Callahan* (2009) (Oyez): https://www.oyez.org/cases/2008/07-751
- *Bell Atlantic Corp. v. Twombly* (2007) (Oyez): https://www.oyez.org/cases/2006/05-1126
- *Ashcroft v. Iqbal* (2009) (Justia): https://supreme.justia.com/cases/federal/us/556/662/
- *Heck v. Humphrey* (1994) (Cornell LII): https://www.law.cornell.edu/supremecourt/text/512/477

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